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Blessing or curse? Recontextualizing '996' in China's overwork debate

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ABSTRACT

This study views the dispute over '996' work schedule (i.e. working from 9 am to 9 pm, six days a week) as a critical discursive moment in the modernization and marketization of China. It argues that behind the dispute lies the hegemonic struggles between business tycoons and the government amidst China's changing business mode. Drawing on the theories of critical discourse analysis, recontextualization, hegemony and interdiscursivity, this study examines the (de)legitimation of '996' by business tycoons and official news media through the appropriation of different discourses to illuminate the hegemonic struggles behind recontextualizing '996'. It concludes that when the business tycoons are blatant enough to whitewash overwork as a 'blessing', the age-old curse in China starts to befall them.

KEYWORDS

Recontextualization; hegemony; interdiscursivity; critical discourse analysis; 996; overwork

1. Introduction

This study examines the recontextualization of the '996. ICU' movement by two concerned parties, i.e. business tycoons and official news media. The primary purpose is to examine how different discourses are appropriated and manipulated to legitimate their respective stance toward '996', the prevalent work schedule 'from 9 am to 9 pm, six days a week without extra pay for those extra hours' (Wang, 2020, p. 4331). Under this schedule, programmers must work 72 hours per week, which clearly exceeds the maximum working hours (40 hours per week) stipulated by China's *Labor Law*. In recent years, '996' has become a prevalent phenomenon in China's digital corporations, including such influential high-tech corporations as Alibaba, Tencent and Jingdong (Xiao et al., 2020).

On 26 March 2019, the '996.ICU' movement was launched on GitHub, a popular code-sharing website owned by Microsoft, to protest against '996' in the high-tech industry. The movement rapidly went viral among Chinese programmers with the catchy and ironic slogan of 'work by 996, sick in ICU (intensive care unit)' (Qu, 2019). As more programmers joined the campaign, they even compiled a 'blacklist' of those companies that required '996'. In return, China's major digital corporations blocked the campaign webpage in corporate Intranets and domestic browsers. In April, official media weighed

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in and covered the anti-996 campaign. '996' was soon heatedly discussed and became a trending hashtag in China's social media. The prevalent overwork issue in China was thus thrown into the limelight of domestic and international news media (Wang, 2020).

In fact, working overtime is not a new phenomenon in China's corporations (Tsai et al., 2016). Nonetheless, the infringement of labor rights in previous decades concerned only migrant workers who had to earn overtime fees under poor working conditions (Chan et al., 2013). Programmers are well-educated elites with high financial returns and broad career prospects. They used to be proud of their overwork culture and 'wolf spirits' in the IT industry (Huang et al., 2020). However, even programmers began to protest against overwork in recent years due to the 'hard work, long hours, low pay and poor job security' of their jobs (Sun Ping & Magasic, 2016). In this sense, the heated debate over '996' can be regarded as a milestone in China's social development. More importantly, it was one of the few social movements which were also championed by the Chinese government, demonstrated by the release of a series of commentaries in official news media criticizing '996' and the entrepreneurs associated with it (Chan & Qiu, 2003). It foregrounded the hegemonic struggles between the employees, entrepreneurs and the government after three decades of marketization.

Although '996' has been examined from different perspectives in different fields, such as legal studies, social psychology, human management and cultural studies (Hang, 2021; Wang, 2020), few studies have given a critical examination of the argumentative discourses at the core of the dispute and penetrate into the hegemonic struggles behind the dispute (Zhang, 2020; Zhen, 2021). This study views recontextualization as not only a representation of social events but also an appropriation of discourses across different social domains (Erjavec & Volčič, 2016; Fairclough, 2003), and aims to answer two research questions: (1) How are different discourses appropriated and manipulated by business tycoons and official news media to (de)legitimate '996'? (2) What socio-political factors contribute to the hegemonic struggles behind the dispute?

The following section will first give a review of the key concepts of recontextualization, interdiscursivity and hegemony in critical discourse studies (CDS) and the related studies in this field. Then the methods of data collection and analysis will be further introduced before a close analysis of four different discourses and their linguistic realizations in the data. The whole article ends with a brief summary of the key findings and a discussion of the socio-political factors behind the representations of the issue.

2. Recontextualization, interdiscursivity and hegemony in CDS

This study is anchored in the socio-dialectic approach of critical discourse studies (CDS) and examines the hegemonic struggles behind the '996' dispute through the theories of recontextualization, interdiscursivity and hegemony (Fairclough, 2003; Gramsci, 1971). According to Norman Fairclough, CDS is an interdisciplinary field of research that draws insights from linguistics, sociology, political science and cultural studies to explicate the relations between language, power and society (Wodak & Meyer, 2016). Viewing language as a form of social practice, CDS is particularly interested in revealing how discourse can be used as a tool for domination, resistance and negotiation of power (Fairclough, 2003; Liu et al., 2022). The primary aim is to critically analyze language

to uncover and challenge power imbalances, promote social justice and contribute to the transformation of societal structures.

The concept of recontextualization used to be attributed to Bernstein's sociology of education and was further developed in CDS to account for the dynamic concept of context and the issues of power and control (Fairclough, 1992, 2003; Linell, 1998; Van Leeuwen, 1995, 2003, 2008; Van Leeuwen & Wodak, 1999). Recontextualization is not a neutral process, but 'an act of control' (Bauman & Briggs, 1990, p. 76), subject to constant appropriation, transformation and manipulation. CDS is concerned about 'the internal field of strategic positions and strategic struggles' at the heart of such processes of recontextualization (Fairclough, 2005) and 'the tensions, contradictions and antinomies which recontextualization gives rise to' (Wodak & Fairclough, 2010, p. 24).

Since recontextualization is concretely manifested in the *intertextuality* and *interdiscursivity* of texts, recontextualization processes can be investigated in detail by focusing on this dimension of texts (Wodak & Fairclough, 2010). Intertextuality refers to the incorporation of elements of other texts (words, phrases, or larger elements) into a text, while interdiscursivity concerns the constitution of a text with different discourse types, such as discourses, genres and styles (Reisigl & Wodak, 2009). Discourses refer to 'ways of representing some part of the world' (Fairclough, 2003, p. 124), and different discourses tend to be associated with different groups of people. They can suggest different ideologies, different subject positions and particular relations between social subjects (Liu & Lin, 2021; Ng, 2020).

The notion of hegemony is central to Fairclough's conceptualization of discourse construction as a struggle (Donoghue, 2018). Hegemony refers to 'leadership as much as dominance across the economic, political, cultural and ideological domains of a society' (Fairclough, 1992, p. 92). It cannot be achieved through force and repression alone, but through coercion and consensus (Gramsci, 1971). However, hegemony 'does not necessarily reside in the realm of the state or a dominant elite' but also emerges 'in subordinate classes, if they are able to share a new ideology, thus creating a new "collective will"' (Montessori, 2011, p. 171). The combination of hegemony theory with interdiscursivity can 'conceptualize interdiscursive processes and processes of contesting and restructuring orders of discourse as processes of hegemonic struggle in the sphere of discourse' (Fairclough, 1992, p. 103).

A variety of CDS studies have been conducted on the contextualization of different text types or discourse conventions in different fields, such as lexicography (Chen, 2015), news translation (Daghigh & Amini, 2022), education (Dickens, 2021), political discourse (Erjavec & Volčič, 2007), corporate and organizational discourse (Chouliaraki & Fairclough, 2010) and news discourse (Feng, 2017; Liu & Lin, 2021; Ozdora-Aksak et al., 2021). For example, Wodak and Fairclough (2010) investigate the recontextualization of European higher education policies in two European countries (Austria and Romania) to shed light on how socio-political and historical contexts impact European Union standardization processes. Wu et al. (2016) analyze the recontextualization and transformation processes inherent in media discourse, illustrating the reasons behind varied interpretations of a text when circulated in different contexts. Erjavec and Volčič (2016) also reveal how the most popular Serbian newspapers appropriate different discourses to justify and legitimize nationalistic ideology. Liu and Ouyang (2016) analyze the recontextualization of Chinese revolutionary discourse in China's

grassroots discourse, and demonstrate how intertextual analysis can be synthesized with the hegemony theory in the discussion of the discursive transformation in terms of social and cultural change. Therefore, a close examination of the recontextualization of different discourses can reveal not only the particular ways of constructing different subject positions and subject relations but also the hegemonic struggles behind the recontextualization processes.

3. Methodology

3.1. Sampling and data collection

This study collected two comments from two business tycoons, i.e. Jack Ma and Richard Liu. It has to be noted that not all entrepreneurs expressed overt support to '996'. The two entrepreneurs were selected because they were among the most influential digital tycoons in China. Besides, their overt endorsement of '996' incurred vast repercussions and received intense public criticism. By contrast, 13 commentaries were collected from some influential official news media in China, such as *Xinhua News*, *People's Daily*, *Guangming Daily* and *China News* (see Appendix 1). All of these news media outlets are traditional party organs closely aligned with the Chinese government's stance, presenting a unified stance on this issue (Liu & Leung, 2021; Wu et al., 2014).

The two comments and news commentaries were collected from 25 March 2019 (the starting date of the '996.ICU' movement) to 30 April 2019. Figure 1 shows the development of the dispute on social media and official news media. The first commentary on '996' was published by the official news agency *China Youth News* on 2 April 2019. It suggested official recognition and approval of the discussion of the topic. In the coming weeks, many official news media followed the trend to voice their stance toward the issue (Liu & Leung, 2021). 30 April was when the dispute over '996' cooled down.

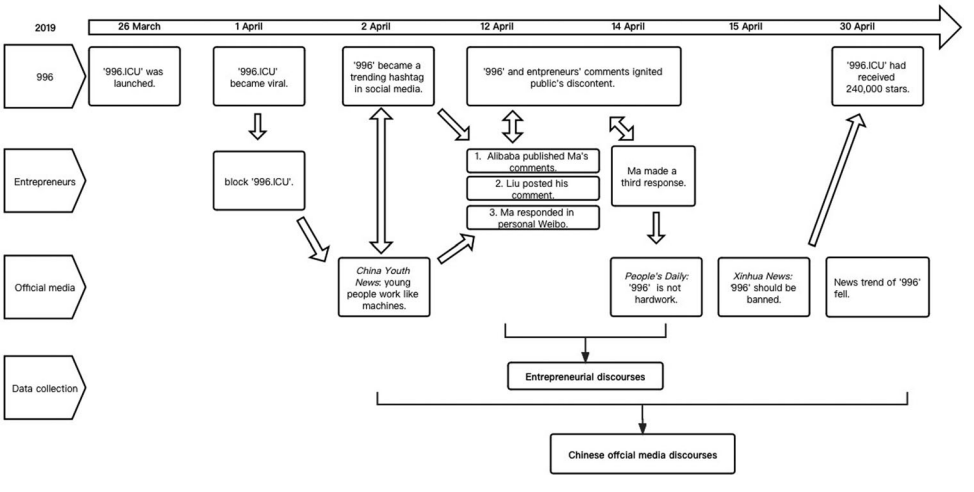


Figure 1. The development of the dispute over '996' work schedule.

3.2. Analytic methods and procedure

The analysis in this study is primarily qualitative. Since discourses can even be revealed through the presence of the vocabulary (Fairclough, 2003), this study started with a close reading of the texts one by one and identified four prominent discourses: two from the business tycoons (namely, **religion** and **family**) and two from commentaries (namely, **corporate** and **legal**). They represent different orders of discourse from four representative domains: family, corporation, religion and laws. Although there may be other discourses from other domains or the same discourse can be recontextualized by different parties, this study tries to illustrate how the four prominent discourses were recontextualized by various parties to construct different subject positions and subject relations, thus contributing to the (de)legitimation of '996' (Ng, 2020). This can also be revealed through features of lexis and semantic relations as well as grammatical features (Fairclough, 2003).

The analysis of the representations of social actors and social action relies on Van Leeuwen's social representational model (Van Leeuwen, 2008). Taking a socio-semantic approach, Van Leeuwen (2008) presents a grammar for the linguistic realizations of sociological actors and actions. Social actors can be included or excluded in representations of social events. When social actors are included, they can be represented as either classes (**Genericization**) or specific and identifiable individuals (**Specification**). Besides, social actors can be represented in terms of either their unique identity (**Nomination**) or the identities and functions they share with others (**Categorization**).

In representing social action, Van Leeuwen (1995) makes a distinction between '**Reaction**' and '**Action**', '**Activation**' and '**Deactivation**', and '**Abstraction**' and '**Concretization**'. 'Reaction' is realized with 'mental' processes, while 'Action' is realized with 'material' and 'semiotic' processes (verbal processes) (Halliday, 1994). Besides, actions and reactions can be activated (Activation), represented dynamically, or de-activated (De-activation), represented as though there were entities or qualities rather than dynamic processes. In addition, different representations may generalize actions and reactions to different degrees, some more abstract and some more concrete.

The findings of the textual analyses will be further discussed in terms of the hegemonic struggles between entrepreneurs, the government and the employees by situating the issue in the socio-historical context of the evolving relations between entrepreneurs and the government over the years (Reisigl & Wodak, 2016). It argues that a proper understanding of the social significances of the dispute cannot be acquired without referring to the historical hegemonic struggles between the government and the entrepreneurs.

4. Findings

4.1. Religion discourse

In Jack Ma's comment, the presence of religious discourse can be detected from the terms '福报' (blessing) and '福气' (good fortune). As Example 1 shows, Jack Ma claims '996 is a huge blessing'. '福报' (blessing) is a key term in Buddhism. Buddhists believe that if you do good things in your life, you will be protected by Buddhas and rewarded with 'good fortune' (福气) (Humphreys, 2005). In ancient China, this belief was promoted by the ruling class to persuade ordinary people into accepting their miserable life and behaving

obediently (Yu, 2019). With this belief, the followers will accept reality, just as Jack Ma claims that 'this is life'. If you can endure the pains, your afterlife and your family will be blessed.

(1) 我个人认为，能做 996 是一种巨大的福气，很多公司、很多人想 996 都没有机会。
I personally think that it is a huge blessing to work '996'. Many companies and individuals desire it but do not have the chance.

The religious discourse is also realized through another religious term '使命' (mission). In almost every religion, one of the mainstream goals is helping others and contributing to the community (Midlarsky et al., 2012). The term '使命' (mission) is repeatedly used in Jack Ma's comment to underline the aim of his corporation. For Jack Ma, the mission of Alibaba is to make businesses easier in the world. With this Jack Ma legitimates and sanctifies his business. This is further achieved by transforming doing business into working for 'commonweal' (公益). He even claims that business is the greatest commonweal, because business contributes to taxes, working positions, and, above all, socio-economic development. Therefore, the appropriation of religious discourse helps to background entrepreneurs' exploitation and manipulation of their employees.

(2) 今天我们拥有这么多资源，我们带着巨大的使命，希望在未来能够让天下没有难做的生意，你不付出可以吗？不可以。
In today's world, with abundant resources at our disposal, we carry a significant mission. We hope that in the future, there will be no challenging business left undone. Can you afford not to make an effort? Certainly not.

With religious discourse, he further transforms '996' into employees' self-fulfillment and his corporation into a facilitator and contributor. In other words, '996' is not for the corporation but for the employees themselves. The resistance to '996' is equal to the refusal to self-fulfillment. Hereby '996' is transformed into a moral responsibility of the employees. As Example 3 shows, he explicitly denies the employees' desire to work for high salaries and shares, because they are all considered vulgar and sinful in religious discourse.

(3) 我认为到阿里来不是为了高工资，不是因为有股票，不是因为我们有很好的工作环境，不是因为年终奖，不是因为这些东西 … 但是我最希望考虑的，是你在阿里待十年，我们怎么样把你变成一个不同的人。
I don't think you come to Alibaba for high salaries, shares, good working environment, annual bonuses, or those things … However, what I am most concerned about is how we can change you into a different person if you stay here for ten years.

By foregrounding religious discourse, Jack Ma delegitimates the protest against '996' by transforming it into an issue of personal beliefs or attitudes rather than a serious social problem. The anti-996 movement was represented as Reactions rather than Actions (see Example 4). He prefers to use mental rather than material processes in representing employees. Whether '996' is acceptable or not depends on whether you love your work or not. If you love your work, '996' is not a problem; if you do not love your work, even working under the regular schedule is also painful.

(4) 我希望阿里人热爱你做的工作，如果你不热爱，哪怕8个小时你都嫌很长，如果你热爱，其实12个小时不算太长。

I hope Ali's workers love your work. If you don't love it, even 8 hours would be too long. If you love it, 12 hours is not very long.

More importantly, Jack Ma further legitimates '996' through differentiation. Jack Ma categorizes the main social actors into 'me' (Jack Ma), 'you', 'those people who do have the opportunity to work "996"', and 'those people who have worked '996' without achieving anything'. He differentiates himself from others by representing himself as an active agent, who used to work harder than others (see Example 5).

(5) 我为什么是大头目？因为我付出的时间比他们多。我除了上课考试以外，做学生会工作花的时间比任何人都多，去学会怎么服务别人，学会怎么样去建立同学之间的关系，让同学们能够在学校里面做得好一点。
Why was I the leader? Because I spent more time. Except for taking courses and exams, I spent much more time working in the Students' Union than anyone else. I learned how to serve others, build connections with classmates, and help them achieve more in college life.

On the other hand, he further differentiates 'you' from 'those who do not have the opportunities to work '996'' and 'those who have worked '996' without achieving anything'. Several nominal groups have been used to over-lexicalize and concretize the latter two groups of people (see Examples 6 and 7). With concretization and differentiation, Jack Ma foregrounds the pain of others and the 'good fortune' of 'you'. Therefore, 'you' should feel 'blessed' to be able to work '996'.

(6) 你去想一下没有工作的人，你去想一下公司明天可能要关门的人，你去想想下一个季度公司的Revenue在哪里都还不知道的人，你去想想你做了很多努力的程序根本没有人用的人。
You can think about those who have no work, those whose companies may close tomorrow, those who do not know where their companies' revenues for the next season come from, and those who toil to make some programs but find no users for them.

(7) 这世界上996的人很多，每天工作12小时、13小时的人很多，比我们辛苦、比我们努力、比我们聪明的人很多，并不是所有做996的人都有这个机会真正做一些有价值、有意义并且还能够有成就感的事。
In this world, there are many people who are working '996', who work 12 or 13 hours a day, who are more diligent, hardworking and intelligent than us. However, not all people who work 996 have the opportunity to do something valuable, meaningful and fulfilling.

Jack Ma thus reduces the issue of '996' to the question of 'choice' (选择), which is also a key term in religious discourse to underline individual responsibility. Buddhist philosophy affirms that human fate is not determined by any external forces but his own choices and that choices indicate self-responsibility (Teo, 1973). The employees are also activated to make their own choices. You can choose to become 'Us' or 'Them'. If you choose to become 'Us', you need to work '996', as in the following:

(8) 这就是生活，你选择了一个中国今天排名第一的公司，第一是要付出代价的 … 大家来了阿里，既然选择了，与其让自己痛苦，不如你的996做得更舒服一点，你工作十年，可以抵人家工作二十年，就这么回事。
This is life. You have chosen a company that ranks the first in China today and you need to pay the price … Now that you have come and worked in Ali, you have made your choice, it is better to make '996' more comfortable instead of feeling painful. The ten years you work here can equate to others' twenty years of working. That is the case.

4.2. Family discourse

Richard Liu recontextualizes '996' into the family domain by framing the relations between himself and his employees as 'brothers' (兄弟). In fact, this is not the first time he has used this term. Richard Liu is known for his promise not to fire any 'brothers' in his corporation. In Confucian culture, family is the core social unit that provides self-sufficient resources, upon which its members depend heavily for their survival (Yao, 2013). Confucian ethical values of filial subservience, loyalty and reciprocity are blended into the fabric of family to bind loyal and subordinate relationships among its members (Yan & Sorenson, 2006).

Richard Liu uses family discourse to strengthen the bond between himself and his employees. Family discourse unites workers as a whole and motivates them to move toward a collective goal that benefits their family (Yan & Sorenson, 2006). By nominating the employees as 'brothers' recurrently, he transforms Jingdong (JD) from a corporation into a family. Hereby Richard Liu transforms the corporation's profit-making goal into fighting for a better life for the family. The illusion of family discourse is that the corporation belongs to the entrepreneur as well as the employees. The family discourse foregrounds the moral values of 'responsibility' (负责) and 'fighting' (拼搏). The resistance to '996' is equal to refusing to fight for the family. Besides, He activates himself as the agent responsible for 180,000 brothers and their families, making them live better. Hereby, he transforms the employees from contributors into beneficiaries and himself from a beneficiary into contributors, as in the following:

(9) 我是要为18万兄弟背后那18万个家庭负责，还是要留下那1%混日子的人，向他们负责？我没有选择余地！
Should I be responsible for the 180,000 brothers and their families, or should I keep the 1% slackers and be responsible for them? I have no choice!

Richard Liu also resorts to differentiation in his comment. He makes a distinction between 'true' and 'false' brothers. True brothers are 'those who are willing to fight for our shared dreams, bear the same responsibilities and pressures, and enjoy the fruits of success', while false brothers are 'slackers', as in the following:

(10) 混日子的人不是我的兄弟！真正的兄弟一定是一起拼杀于江湖，一起承担责任和压力，一起享受成功的成果的人！
Slackers are not my brothers! True brothers are willing to fight for our shared dreams, bear the same responsibilities and pressures, and enjoy the fruits of success.

He further makes a distinction between previous brothers and current workers. Previous workers were hardworking, but there are more and more people who issue orders and fewer and fewer people who work hard. The number of slackers is also increasing rapidly. Unlike Jack Ma who reduces the choice to the employees, Richard Liu leaves the choice to himself. However, this choice is reduced to a choice between '180,000 JD brothers and their families' and '1% slackers' (see Example 9).

Richard Liu also puts the responsibilities on the employees themselves and underlines that JD will never force employees to work '996', but every employee in JD must have 'fighting spirits' (奋斗精神). If you do not have fighting spirits, you are not qualified to be my brothers, as in the following:

(11) 京东永远不会强制员工995或者996,但是每一个京东人都必须具备拼搏精神!
JD (Jingdong) will never enforce the 995 or 996 work schedule, but every JD employee must possess the fighting spirits!

4.3. Corporate discourse

By contrast, official news media prefer to recontextualize '996' in the corporate domain. One distinguishing feature of corporate discourse is that it clings to the raisons d'être of 'survival, profits or growth' (Poncini, 2007, p. 51). Corporate discourse is appropriated in official news media to delegitimate '996' via 'De-activation' (Van Leeuwen, 2008). 'De-activation' consists of 'Objectivation' and 'Description'. The essence of '996' is objectivated as 'the motive to reduce costs and exploit employees', and 'the primal impulse to pursue profits'. '996' is also described as 'overwork' (过度超时加班), and 'forced overwork' (强制加班).

Besides, '996' is described as morally wrong, as can be seen from such moral expressions as 'abnormal' (畸形), 'unreasonable' (不近人情), 'abnormal and inhuman' (不正常、非人性), 'cannibal culture' (吃人文化), and 'blood-sucking culture' (吸血文化). It also gives a negative evaluation of those entrepreneurs and corporations. They highlight that those entrepreneurs and corporations 'do not feel ashamed of it but feel proud of it' (不以为耻、反以为荣). Entrepreneurs are also nominated as 'immoral capitalists' (无良资本家). The nomination strategy enables the media to condemn entrepreneurs directly for the original sins of the capital and reflects the 'social and political views and interest of the discourse producer' (KhosraviNik & Sarkhoh, 2017, p. 623). An example is as follows:

(12) '工作996、生病ICU',疯狂的加班文化,已经成为某些行业的明规则,涉事企业不以为耻,反以为荣,企图论证其存在即合理。 (Commentary 13)
Work by 996, sick in ICU'. The crazy overwork culture has already been a latent rule in some industries. The corporations involved are not shameful but proud, trying to justify what is real is reasonable.

Although corporate discourse is appropriated in official news media to represent '996', it tends to foreground the original sin of entrepreneurs and corporations. These commentaries blamed entrepreneurs and corporations themselves for underlining their innermost desire to reduce costs and pursue profits and their dereliction of social responsibilities. They are negatively appraised from the perspective of Marxism and Communist ideologies. In Marx's (1981) words, 'capital is vampire-like, only lives by sucking living labor, and lives the more, the more labor it sucks' (p. 484).

Besides, '996' was further delegitimated by concretization. It makes a distinction between different understandings of 'fighting' (奋斗) and 'choice' (选择). Fighting can be either 'painful' (苦干) or 'ingenious' (巧干), either by 'working overtime' (延长工时) or by 'improving efficiency' (提高效率). '996' can be either 'voluntary' (主动的) or 'forced' (被动的). While voluntary '996' is a personal choice (个人选择), forced '996' is the abuse of power (仗势欺人). Examples are as follows:

(13) 但崇尚奋斗、崇尚劳动不等于强制加班。苦干是奋斗,巧干也是奋斗;延长工时是奋斗,提高效率也是奋斗。 (Commentary 12)
However, the promotion of fighting spirits and worship of work is not forced overwork. Working painfully is fighting while working ingeniously is also fighting. Working overtime is fighting whereas improving efficiency is also fighting.

(14) 更重要的是，自觉拼搏与压榨加班是两码事——前者指向个体自由选择，后者指向群体强制遵从。 (Commentary 7)
More importantly, voluntary fighting and exploitative overwork are entirely different—the former refers to individual freedom of choice, the latter group coercion.

(15) 第三种观点认为，崇尚奋斗不等于就可强制 '996'，主动的 '996' 是个人选择，是美德与奉献精神的体现，被动的 '996' 则是仗势欺人。 (Commentary 10)
A third view holds that advocating fighting spirits does not mean compulsory '996'. Proactive '996' is personal choice, reflection of virtue and dedication whereas forced '996' is the abuse of power.

Official news media also discuss '996' in terms of 'development' (发展), a key term in corporate discourse. Nevertheless, they further distinguish between 'short-term' and 'long-term' development. While acknowledging '996' as beneficial to the short-term development of corporations, they underline that it is harmful to the long-term development of corporations.

(16) 对于互联网公司来说，以 '996' 为代表的发展模式已经落伍，从管理中挖潜，在创新中发展才是新时代企业发展的方向。 (Commentary 10)
The development mode represented by '996' is outdated for Internet companies. To explore the potential in management and innovation is the new direction of corporation development in the modern era.

Official news discourse puts the responsibilities of '996' on the corporations and reduces the issue to the problems of management and innovation. It underlines that 'making profits' and 'protecting employees' fights' can be achieved through the improvement of corporations' management and innovation (see Example 16).

4.4. Legal discourse

Legal discourse is appropriated in almost all news texts to foreground the illegal nature of the issue. This can be seen from the frequent use of some evidential expressions, such as 'apparently' (很显然), 'obviously' (明显), 'there is not too much room for discussion' (其实并没多少可讨论的余地). These expressions indicate the obviousness or self-evidence of the illegal nature of the issue. Examples are as follows:

(17) 很显然，'996工作制'是违反劳动法的。 (Commentary 6)
Obviously, '996' work schedule violates labor law.

Official news media also activate the labor supervision departments to underline their authority and duty to address the problem. However, they tend to give a generic representation of the official departments, such as 'labor law enforcement department' (劳动执法部门), 'labor unions at all levels' (各级工会组织), 'labor rights protection department' (劳动权益保障部门), 'labor supervision department' (劳动监察部门), 'labor supervision department' (劳动监管部门), etc. The generic representations of official departments can highlight their authority over this issue on the one hand and avoid putting pressure on specific departments on the other hand. This can be revealed in the explicit denial of '996' as a 'corporate' or 'family' issue but a 'legal' issue (see Example 18). The mitigation of the pressure on official departments can be seen from such modal expressions as 'should also' (也应), 'supposed to' (理当该), and 'should' (应该) (see Example 19).

(18) 既是违反国法的行为，岂能当作'家法'秘密'来看待？ (Commentary 13)
Since it violates national law, how can it be regarded as 'family affairs' or 'corporate secrets'?

(19) 同时，劳动执法部门也应加强监督，切实维护法律权威，保障劳动者权益。 (Commentary 10)
In the meantime, the labor law enforcement department should also enhance supervision, safeguard the authority of law and protect workers' rights.

Besides, it also blames some employees because they choose to work '996' for extra pay, thus contributing to the spread and popularity of '996' in some corporations (see Example 20). On the other hand, it also foregrounds the difficulties in collecting evidence and the low cost in violating the labor law (see Example 21).

(20) 而一些劳动者配合"996"工作制，虽然是为了自己多赚一些加班费，但在客观上对部分用人单位实施这种违法侵权行为，起到了助长与纵容作用，只会令一些用人单位得寸进尺，不惮于实施各类违法侵犯劳动者权益的管理制度与行为。 (Commentary 3)
Some workers comply with the "996" work schedule for extra pay. But it will only encourage illegal and tortious actions in employers and stimulate them to recklessly implement management systems and behaviors that violate workers' rights and interests.

(21) 是法律责任的缺位。举证难、认定难、违法成本低，这是过劳加班难以禁绝的根源。 (Commentary 7)
The first reason is the absence of laws. Due to difficulties in collecting evidence and identifying illegal cases, as well as the low cost of law violation, it is hard to ban overwork completely.

(22) 如此，劳动者自身积极维权，劳动监察部门积极履职、严格执法，才会有利于"996"工作制淡出乃至消弭，真正令劳动者的权益得到应有的维护与保障。 (Commentary 3)
Workers actively defend their rights. The labor supervision departments actively perform their duties and strictly implement the law. In these ways, the "996" work schedule will gradually disappear and the workers' rights will be protected and guaranteed.

In other words, the appropriation of legal discourse can foreground the authority of official departments over the issue. It avoids pressure on specific departments and puts the responsibilities on both the employees themselves and the official departments.

5. Discussion and conclusion

This study has examined the recontextualization of four different discourses to (de)legitimate '996' by business tycoons and official news media. Jack Ma prefers to appropriate religious discourse and conceptualizes '996' as a 'blessing' and a 'good fortune'. This is legitimated through transforming the corporation's aim of making profits into working for 'commonweal' and the meaning of work from earning money and enjoying life into self-fulfillment. Richard Liu prefers to appropriate family discourse and frames the relations between employers and employees into 'brothers'. He foregrounds '996' as fighting for a better life for the shared family, thus backgrounding their economic interests. Both business tycoons resort to differentiation to make a distinction between different groups of social actors. While Jack Ma reduces '996' to the choice of the employees to be like positive 'Us' or negative 'Them', Richard Liu reduces the issue to his obliged choice between 'true' and 'false' brothers. Therefore, the recontextualization of the issue from the corporate domain to a family or religious domain is not accidental, because both

family and religious discourses confine '996' to an issue between employers and employees themselves, backgrounding their economic interests and rejecting the role of the government in this issue.

By contrast, the recontextualization of the issue into corporate and legal domains also serves to delegitimate '996' in official news discourse. Corporate discourse is appropriated to underline '996' as a strategy to 'make profits' and 'reduce costs'. However, it is delegitimated through references to Marxism and Communist ideologies. On the one hand, they give a negative moral evaluation of '996' and the concerned entrepreneurs; on the other hand, they delegitimate the two entrepreneurs' discourses by concretizing the different meanings of 'fighting' and 'choice' and reduce the problem of '996' to a choice between 'long-term' and 'short-term' development and the issues of 'management' and 'innovation'. Legal discourse is appropriated to highlight the illegal nature of '996' and suggest official departments' authority over this issue. However, they tend to give a generic representation of the corporations and the official departments. On the one hand, it does not specify which corporation is responsible for the issue. On the other hand, it mitigates the pressure on specific official departments to address the problem. While giving a moral attack on entrepreneurs' original sin in pursuing profits and exploiting employees in moral discourse, they put the responsibilities on both official departments and employees to address the problem in legal discourse. Therefore, the recontextualization of the issue into corporate and legal domains serve to reject the myth of religious and family discourses and foreground the authority of the government in this issue.

The rise of the debate over '996' as a key discursive moment and the particular ways of recontextualizing '996' cannot be properly understood without situating it in the changing relations between entrepreneurs or merchants and the government in China's history. Across China's two-millennium-long history, the prevailing social hierarchy consisted of *shi* (officials), *nong* (peasants), *gong* (workers) and *shang* (merchants) (Rickett, 2021). Chinese feudalism systematically favored peasants while suppressing merchants, as a small agricultural economy suited their needs for stability and autocracy. Commerce was encouraged when the country was devastated and in urgent need of development but suppressed and strictly controlled when the country flourished to safeguard the rule of the government (Tang, 2017). Therefore, merchants in China were plagued by the predestined curse. On one hand, they must seek alignment with the government to survive the anti-commerce sanction (Li et al., 2008; Tang, 2017). On the other hand, when merchants gained enough strength to challenge the government's hegemony, their alignment with the government became precarious and the curse would befall them. Similar stories unfolded repeatedly for business tycoons in ancient China.

The destiny of merchants remained largely unchanged after the founding of the People's Republic of China (PRC). The Chinese Communist Party (CCP) legitimated its rule by claiming to be the only leader of the mass working class and the intrinsic follower of Marxism. The lack of trust led to a social constraint on business and severe interrogation toward the 'capitalist roader' (*zouzipai*) that supported free market policies (Hui, 2019). Nevertheless, the reform and opening-up policies after 1978 contributed to the improvement of merchants' social statuses in China. In order to attract global capital and compete in the global market, China's corporations have to exploit the country's abundant cheap

labor as an essential competitive advantage to produce low-cost products (Wang, 2020). However, this does not mean that the Chinese government is indifferent to the sufferings of the mass working class. The party has enacted several labor regulations and laws to protect workers' rights, including the 2004 *Provision on Minimum Wages*, the 2008 *Labor Contract Law*, the 2008 *Labor Dispute Mediation and Arbitration Law*, and the 2011 *Social Insurance Law* (Liu, 2022). These laws and regulations pave legal pathways for the government to monitor large corporations and protect labor rights when disputes arise. Nevertheless, to ensure economic development, the government at all levels does not take the initiative to find fault with corporations as long as their operations do not lead to broad social disputes, thus making these labor laws and regulations 'a tiger without teeth'.

However, the equilibrium of the power relations between entrepreneurs and the government has been upset with the development of the digital economy. On the surface, anti-996 campaign became the 'tipping point' when public resentment against overwork and insufficient labor protection erupted. Beneath the surface are accumulating economic and political tensions between private sectors and the government. For years, China's Internet industry has disorderly expanded without proper regulations and produced Big Tech, which eventually dominated the market with their advantageous platforms (Wu et al., 2021). As digital conglomerates possess more economic, and even political and social powers, concerns arise about the potential abuse of monopolistic digital powers in market competition, unequal wealth distributions, the challenge they pose to reform traditional industries that threaten state monopolism, and primarily whether non-state-owned corporations and their tech barons could 'operate in accordance with Chinese values and CCP objectives' (Wang & Gray, 2022, pp. 79–81). Under such circumstances, official news media released a series of commentaries to delegitimate '996'. Following this dispute, dramatic changes have occurred in China's digital industry. Many business tycoons, including Jack Ma and Richard Liu, have resigned from their managing positions with the Chinese government's recent endeavor toward common prosperity and reducing the income gap between the rich and poor. In this sense, the dispute over '996' cannot be viewed as an independent or accidental issue over labor rights in China's digital industry but as a milestone in the hegemonic struggles between China's business tycoons and the government. When the business tycoons are blatant enough to whitewash overwork as a 'blessing', the age-old curse in China starts to befall them. Nevertheless, the discourses identified in this study are only illustrative rather than exhaustive. The different discourses only serve as discursive resources available for the choice of different parties in different socio-political contexts to fulfill different communicative purposes. The recontextualization of different discourses for various topics in other key discursive moments thus merits our further attention to uncover the hegemonic struggles behind different orders of discourse (Fairclough, 2003).

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Appendix 1

- Comments from two business tycoons:
- Jack Ma's comment on 996. (马云谈 996) *WeChat*. Retrieved from https://mp.weixin.qq.com/s/oc0NugBjpsn1_mBtbib2Lg
- 8116 + 8! Richard Liu's comment on '996'. Heated discussion online. (8116 + 8！刘强东谈'996'，网上又炸锅了) (2019, April 13). *Baidu*. https://baijiahao.baidu.com/s?id = 1630689728783536517&wfr = spider&for=pc
- Commentaries from official news media:
- Reject '996' work schedule! People-oriented guarantees long-term development (拒绝'996'工作制！以人为本才能获得长远发展). (2019, April 3). *China Economic Times*. http://views.ce.cn/view/ent/201904/03/t20190403_31794131.shtml
- '996' work schedule is spreading: over 70% of white collars work overtime without compensation ('996'工作制有蔓延趋势：超七成白领无偿加班). (2019, April 22). *China Economic Times*. http://www.ce.cn/cysc/newmain/yc/jsxw/201904/22/t20190422_31908001.shtml
- The labor supervision department should work on stopping '996'(遏制'996' 需要劳动监察部门发力). (2019, April 17). *People's Daily*. http://industry.people.com.cn/n1/2019/0417/c413883-31033624.html
- Who benefits from '996 work schedule'?('996工作制'是谁的如意算盘?) (2019, April 2). *People's Daily*. http://opinion.people.com.cn/n1/2019/0402/c119388-31009768.html
- Running away from '996': I'd rather not get married, not have children nor buy a house, rather than exchange my life for money (逃离996：我宁可不婚不育不买房，也不要拼命). (2019, April 16). *China News*. https://www.chinanews.com.cn/gn/2019/04-16/8809887.shtml
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- '996' work schedule: moral coercion could not cover illegality ('996'工作制，道德绑架无法掩盖违法事实). (2019, April 8). *Worker's Daily*. http://right.workercn.cn/164/201904/08/190408094926754.shtml
- Starting today: say goodbye to '996' (挥别'996'，从今天开始). (2019, April 18). *China Youth News*. https://m.youth.cn/pl/pllb/201904/t20190418_11929821.htm
- Advocating fighting spirits does not mean compulsory '996' (崇尚奋斗，不等于强制996). (2019, April 14). *People's Daily*. https://baijiahao.baidu.com/s?id = 1630774179249573422&wfr = spider&for=pc
- Young workers stuck in '996' are like machines with alarm clocks (被'996'工作制围困的年轻人：像是定好闹钟的机器). (2019, April 2). *China Youth News*. https://www.baidu.com/link?url = eYQZl7VbXNmWJimGyWm4Te8nFGVNWfCEL2u65k3QQ1AZZsvvLg2kpFFox3PuuwmNaTWonDz5xBz1T3JRGkRt37JCPnJpV3RhCiTwVoecKV7&wd=&eqid = e6532ef5002072ff00000003627fa873
- '996 working culture' is indeed 'blood-sucking'('996加班文化'实为'吸血文化'). (2019, April 7). *Rednet*. https://www.baidu.com/link?url = vgrP0_E907bH5B6pfGXdD7zLB5r56NqCeDezwuoRJg1c-K7YQ1zKOhl8ra3HCaidunntnn0D6Y8e05w9gG_unXu9NWQi4mwCdLTlifrQkxq&wd=&eqid = 805f66ce00205c0900000003627fa8ad